
OVERVIEW

Efforts must be made to find families for older youth in care and to identify placement options that provide age-appropriate opportunities and responsibilities. Youth, ages 14-21, must be involved in placement decisions. Youth are a valuable resource in identifying individuals who might be available to serve as placements.

For placement preference, a relative is defined as an individual who is at least 18 years of age and related to the child within the fifth degree by blood, marriage, or adoption, including the spouse of an individual related to the child within the fifth degree, even after the marriage has ended by death or divorce, the parent who shares custody of a half-sibling, and the parent of a man whom the court has found probable cause to believe is the putative father if there is no man with legally established rights to the child.

A relative may also be an individual who is at least 18 years of age and not related to a child within the fifth degree by blood, marriage, or adoption but who has a strong positive emotional tie to or role in the child's life or the child's parent's life if the child is an infant, as determined by the department or, if the child is an Indian child, as determined solely by the Indian child's tribe. As described under MCL 712a.13a.

Placement preference must be given to an adult related to the child within the fifth degree by blood, marriage, or adoption provided the relative meets all relevant state child protection standards. Consideration should also be given to adults not related to a child within the fifth degree by blood, marriage, or adoption but who has a strong positive emotional tie or role in the child's life or the child's parent's life if the child is an infant, as determined by the department. The department can override this decision with good cause.

Good cause means the following:

- A request by one or both of the child's parents to deviate from this preference.
- The child's request, if the child is of sufficient age and capacity to understand the decision that is being made.
- The presence of a sibling attachment that can be maintained through a particular placement.

- The child's physical, mental, or emotional needs, such as specialized treatment services that may be unavailable in the community where families who meet the placement preferences live.
- The distance between the child's home and the proposed family placement would frustrate the reunification goal or otherwise impede permanency.

INDEPENDENT LIVING PREPARATION

Independent living preparation is required for all youth in out of home placement age 14 and older, regardless of their permanency planning goal. The purpose of independent living preparation is to assist youth in transitioning to self-sufficiency. Once the youth is age 14, the case manager must document the independent living services provided and goals for future services in the following documents, as applicable:

- DHS-441a, Parent-Agency Treatment Plan.
- DHS-442a, Permanent Ward Treatment Plan.
- DHS-4789, Juvenile Justice Initial Service Plan.
- DHS-4789, Juvenile Justice Updated Service Plan.
- DHS-4789, Supplemental Updated Services Plan.

Provision of services does not equate to achievement of permanency. Reasonable efforts to achieve permanency must still be provided; see [FOM 722-07, Permanency Planning - Overview](#), for all permanency planning goal requirements.

Life Skills Assessment

The Casey Life Skills Assessment (CLSA) is a free, online youth-centered tool that assesses the life skills that youth need for their well-being, confidence, and safety, as they navigate high school, post-secondary education, employment, and other life milestones. The CLSA must be completed within 90-calendar days of a youth turning 14 years of age, and annually thereafter.

For youth who are 14 years of age or older when they enter care, the assessment should be completed within 90-calendar days of entering care. The CLSA can be accessed by downloading the

[toolkit](#) and accepting the terms of agreement. Once downloaded the case manager should do one of the following:

- Print the assessment for the youth to complete.
- Have the youth complete the assessment in the excel document within the toolkit, which will then provide a tab with a results bar graph.

For youth who are placed in a child caring institution (CCI), the CCI must ensure completion of the CLSA and provide the results to the case manager.

If a youth is functioning at a level that prevents use of the CLSA, the case manager must identify another validated tool appropriate to the youth's functional needs and request approval for use of the tool by sending it to the [Child Welfare Policy mailbox \(Child-Welfare-Policy@michigan.gov\)](mailto:Child-Welfare-Policy@michigan.gov) or the [Juvenile Justice Policy mailbox \(Juvenile-Justice-Policy@michigan.gov\)](mailto:Juvenile-Justice-Policy@michigan.gov).

Independent living preparation skills are assessed for each youth as being adequate or inadequate on the Child Assessment of Needs and Strengths (CANS) or the Juvenile Justice Strength and Needs Assessment; see [FOM 722-09, Child Assessment of Needs and Strengths \(CANS\)](#).

For youth aged 14 or older, a written description must be included in the youth's treatment plan of the programs and services which will help the youth take care of oneself across all domains. Examples of age-appropriate services include, but are not limited to:

- Daily living skills.
- Preventive health services.
- Self-care skills.
- Relationship and communication.
- Housing and transportation.
- Money management.
- Work and study life.
- Career and education planning.
- Civic engagement.
- Navigating the child welfare system.
- Looking forward.
- Mentoring - a youth must be connected to an adult who will guide and support them as a parent would after the youth's case is closed.

In addition to the CLSA for youth aged 14 and up, the toolkit includes other assessments that should be considered for use with youth when appropriate. These supplemental assessments include:

- CLSA for American Indian/Alaskan Native.
- CLSA for youth identifying as LGBTQ+.
- CLSA for parenting infants.
- CLSA for parenting young children.
- CLSA for youth ages 5-11.
- CLSA for youth ages 10-14.
- Support system (assesses a youth's formal and informal support system).

Youth Involvement

To prepare for independent living, the youth must be offered the opportunity to participate in quarterly family team meetings (FTM); see [FOM 722-06B, Family Team Meeting](#). Youth must be involved in the development of their case service plan. The level of involvement in the plan and the services provided are dependent upon the youth's preference and developmental abilities.

If a youth is unavailable or declines to sign or be involved in the development of the case service plan, the case manager must identify, and document additional actions needed to secure the youth's participation in case service planning and implementation of the treatment plan.

Case Plan Team Members

Beginning at age 14, youth may select one or more adults who are not the youth's caregiver or case manager to be part of their case planning team. The team member's role is to be the youth's advisor and advocate for the youth's permanency, well-being, and normalcy through the application of the [DHS-5307, Rights and Responsibilities of Children and Youth in Foster Care](#); see [FOM 722-06J, Rights of Children in Foster Care](#). The team member will assist the youth in developing their case plan by participating in semi-annual transition meetings, applicable FTMs, and the 90-day discharge meeting; see [FOM 722-06B, Family Team Meeting](#).

The individuals selected by the youth may be denied at any time if there is good cause to believe that the individual would not act in the best interest of the youth. The case manager must document the reasons for denying an individual chosen by the youth, in the case service plan.

Note: Youth who have a juvenile justice case and no foster care case have no FTM requirement.

Caregiver's Role

The youth's caregiver is an invaluable resource regarding independent living preparation, training in daily living skills, budgeting, and providing a support system for youth as they transition out of the foster care or juvenile justice system. The case manager must detail the activities that the caregiver will provide to assist the youth in the youth's treatment plan.

INDEPENDENT LIVING PLACEMENT

Placement in independent living may be an acceptable living arrangement for youth 16 years or older. Prior to placement in independent living, the case manager must assess the youth, with the CLSA, as being prepared for independent living and demonstrate a pattern of mature decision making.

Assessment and Preparation of Youth

Independent living skills must be assessed for each youth as being adequate or inadequate based on the CANS or the Juvenile Justice Strength and Needs Assessment, and the CLSA. Provision of independent living services must be documented within the youth's service plan, as well as the plan for services for any independent living need identified as inadequate.

Independent Living Program Statement

A copy of the supervising agency's independent living program (ILP) statement must be given to the youth before placement in independent living.

Independent Living Agreement

The youth must be involved in the development of and sign the individualized independent living agreement. The [DHS-4527, Independent Living Agreement](#), must be reviewed and updated quarterly. If no changes are required, the youth and the case

manager must indicate that this review has occurred by re-signing and dating the agreement. If changes are required, a new agreement must be completed and approved.

Supervisory Approval

The supervisor must review and approve, by signature, all initial and updated independent living agreements.

Case Service Plan Documentation

When a youth resides in an independent living placement, the case service plan must document the following:

- The services provided and goals for future services that will help the youth maintain independent living successfully and prepare the youth for functional independence.
- Independent living is the most appropriate placement for the youth.
- The youth exhibits maturity in self-care and personal judgement.
- The case manager has personally observed that the living situation provides suitable social, emotional, and physical care.
- The youth has adequate financial support to meet their housing, clothing, food, and miscellaneous needs.
- An evaluation of the youth's need for supervision. The case manager must have face-to-face contact with the youth as described in [FOM 722-06H, Case Contacts](#), or [JJM 270, Juvenile Justice Specialists Contact Requirements](#).
- If the youth is a parent of a child who is 0 to 12 months old, safe sleep guidelines should be discussed. More information can be found at the [Michigan Department of Health and Human Services \(MDHHS\) Safe Sleep for Infants](#) webpage.
- The youth was provided with a phone number to contact the agency on a 24-hour, 7-day-a-week basis.
- The youth has a positive relationship with at least one consistent, reliable adult.

**Case Manager
Responsibility**

Case managers maintain responsibility for monitoring youth in independent living placements. The same policy requirements that apply to other foster care or juvenile justice cases apply to cases involving youth placed in independent living.

**Independent Living
Stipend**

The case manager is required to provide reasonable efforts to assist the youth in meeting the requirements of the independent living agreement. Documentation of these efforts must be included in the case service plan. If a youth is not able to meet the requirements listed in the independent living agreement, alternative placement should be sought, however the youth's independent living stipend should not be stopped.

**PLACEMENT IN AN
ADULT CARE
FACILITY**

State law allows for placement of a person under the age of 18 in a licensed adult foster care (AFC) family home or in a licensed AFC small or medium group home under certain circumstances; see [MCL 722.115](#). Placement in an adult care facility may be considered for a youth under the age of 18 if it is the most appropriate, least restrictive setting. Placement in an adult care facility is authorized through a variance process; see *Request for Authorization*. The supervising agency retains supervisory responsibility for any youth placed in an adult care facility.

Placement Criteria

Prior to requesting authorization for placement in an adult care facility, the supervising agency must ensure the placement meets the following criteria:

- Is in the best interests of the youth.
- Has the approval of the youth's parent, guardian, or Michigan's Children's Institute (MCI) Superintendent.
- Has the capacity to meet the youth's identified needs.

- The youth's psychosocial and clinical needs must be compatible with those of other residents.
- For juvenile justice youth, the placement must protect community safety.
- The youth's level of cognitive functioning is consistent with that of other residents.

If approved, the case manager must reevaluate the placement quarterly to determine that these criteria continue to be met. The case manager must document the continued appropriateness of the placement in the youth's case service plan.

Request for Authorization

The supervising agency must request the appropriate variance request form from Division of Child Welfare Licensing (DCWL). The request must be signed by a supervisor from the supervising agency and submitted to DCWL. The request must contain the following information:

- The name of the provider, the name of the facility and the license number must be included. The license number must begin with the prefix AF, AS, or AM.
- Information about the youth including:
 - Name, date of birth, and gender.
 - A description of the youth's psychosocial and clinical needs.
 - The prescribed clinical treatment for the youth's condition.
 - A description of the youth's cognitive level.
 - A description of the youth's developmental disability, mental illness, or physical disability.
 - Medical documentation that the youth is physically limited to such a degree as to require complete physical assistance with mobility and activities of daily living.
 - Any history of known trauma.

- An assessment of the youth's immediate and long-term need for foster care.
- Verification that the above placement criteria has been met.

Review of Request

DCWL and the Department of Licensing and Regulatory Affairs (LARA) Adult Foster Care and Home for the Aged (AFC/HA) Licensing Division will review the variance request and make a coordinated decision regarding the youth's placement in the adult care facility. DCWL will provide the final decision in writing to the supervising agency and the adult foster home indicating approval or denial of the request. Placement in the adult care facility must not occur prior to written approval from DCWL.

**SERVICES TO
OLDER YOUTH****Young Adult
Voluntary Foster
Care**

Young Adult Voluntary Foster Care (YAVFC) offers eligible foster youth ages 18, 19, and 20 who were in state-supervised foster care, under an abuse/neglect order, at the age of 18 or older to extend foster care maintenance payments until age 21; see [FOM 722-16, Young Adult Voluntary Foster Care](#).

**Services to
Michigan
Children's Institute
Wards until Age 20**

Youth committed to MCI who chose not to participate in YAVFC may remain in foster care and continue to receive payments until age 20, either in family foster care or independent living; see [FOM 901-8, Fund Sources](#).

MCI commitment will end on the 19th birthday and the youth's legal status will change to 51, former MCI ward.

Note: Determination of care (DOC) rates cannot be paid to a foster parent and administrative rates cannot be paid to a placement agency foster care (PAFC) provider once the youth reaches age 19.

**Title IV-E Eligibility
for Youth after Age
18**

For information pertaining to Title IV-E eligibility for youth after age 18 see [FOM 902, Funding Determinations and Title IV-E Eligibility](#).

**Youth in Transition
Funding**

The John H. Chafee Foster Care Program for Successful Transition to Adulthood, called Youth in Transition (YIT), can assist with goods and services for youth who are in an eligible out of home placement after the age of 14 and have not yet reached the age of 23; see [FOM 950, The Youth in Transition \(YIT\) Program](#).

**Education and
Training Voucher**

The Chafee Education and Training Voucher Program (ETV) provides resources specifically to meet the education and training needs of youth aging out of foster care. This program provides vouchers of up to \$5,000 per fiscal year to eligible youth attending post-secondary education and vocational programs up to age 26; see [FOM 960, Education and Training Voucher \(ETV\) Program](#). The amount available each year is determined by available federal and state funds.

Driver's Training

Youth who are in foster care should have the opportunity to obtain a driver's license. Case managers may be able to access YIT funds for driver's education courses; see [FOM 903-09, Case Service Payments](#) and [FOM 950, The Youth in Transition \(YIT\) Program](#).

**State Identification
Card**

Any youth aged 16 and older who does not have a Michigan driver's license should obtain a State of Michigan identification card. The case manager must assist the youth with obtaining an identification card from the local Secretary of State office.

**Consumer Credit
Reports**

Case managers must request annual credit reports for youth ages 14-18 and assist youth 18 and older with obtaining a consumer credit report; see [FOM 722-06E, Consumer Credit Reports](#).

**Michigan Works!
Agency (MW!A)
Referral**

Case managers may refer youth who are 16 years and older and in need of employment skills training to the local Michigan Works! Agency (MW!A) for participation in any available youth employment programs using the [DHS-348, Michigan Works!/Workforce Innovation and Opportunity Act Agency Referral Foster Care Youth](#).

**Voter Registration
Information**

At least 90-calendar days prior to a youth turning 18 years of age, and annually thereafter, the case manager will provide voter registration information. Updated brochures can be found at the [Secretary of State website](#).

**Pregnant and
Parenting Youth**

Youth in foster care, including youth in YAVFC, who are parenting, pregnant, or expecting a biological child may be eligible for prevention services through the Family First Prevention Services Act (FFPSA); see [SRM 108, Prevention Services: Family First Prevention Services Act](#). Youth with children in the same placement; see [FOM 903-03, Payment for Foster/Relative Care](#) for payment policy.

**OLDER YOUTH
EXITING THE
FOSTER CARE
SYSTEM**

Older youth exiting the foster care or juvenile justice system encounter additional obstacles and many are not prepared to meet financial, health, social, and educational challenges. Youth can benefit from additional time in care to improve proficiency and receive maximum benefit in these areas. **Age alone must not be**

used as a reason for closure for youth who continue to be eligible for foster care or YAVFC services.

Assessment Factors for Case Closing Decisions for Older Youth

Youth requesting case closure must be actively involved in the assessment of these criteria. Decisions to close a case prior to a youth reaching age 21 must be based on an assessment of the following criteria:

Permanent Connections

- Does the youth have an identified adult who can assist the youth as a parent would?
- Is the identified adult willing to make a commitment to assume this role for the youth?

Housing

- Has the youth obtained suitable housing that can be maintained with the youth's available resources?
- Has a referral for housing assistance been made?

Education

- Does the youth have a Graduate Educational Diploma (GED) or high school diploma?
- Is the youth aware of opportunities for post-secondary education or training?
- Does the youth plan to attend college?
- Is a funding plan in place?

Employment

- Has the youth participated in job training or exploration?
- Has the youth been referred to agencies to assist with employment, through the Workforce Innovation and Opportunity Act (WIOA) at the local Michigan Works! Agency?

- Does the youth have the training and education necessary to pursue desired employment?
- Is the youth employed?

Financial Literacy

- Does the youth have sufficient income to support themselves?
- Does the youth have an established bank account, either checking or savings?
- Does the youth know how to write a check, pay bills, budget, and save money, and comparison shop?

Daily Living Skills

- Does the youth possess basic living skills such as cooking, cleaning, personal care, laundry, time management, and the ability to access community resources?
- Does the youth have access to transportation?
- If youth is disabled, has a referral for Supplemental Security Income (SSI) determination been made?

Healthy Behaviors

- Does the youth make responsible choices in the areas of relationships, health and well-being, substance use, and medical care?

**Requests for Case
Closure Against
Recommendation**

If the youth requests case closure prior to the age of 21, against case manager recommendation, the case manager must document the concerns in the case service plan. The youth's signature is required on the DHS-69, Foster Care/Juvenile Justice Action Summary, as acknowledgement that the youth participated in the evaluation of the *Assessment Factors for Case Closing Decisions for Older Youth*, listed above, and is still requesting closure despite the case manager's recommendation.

In addition, youth older than 18 years of age who are requesting case closure prior to 21 years of age must be provided information

about the availability of re-entering care under the YAVFC program, including who they can contact if they choose to.

Foster Care Case Closure Without Permanency

All youth under the supervision of MDHHS must achieve one of the five federal goals before the case can be closed, see [FOM 722-07, Permanency Planning - Overview](#).

In extraordinary circumstances, permanency may not be achieved for older youth. Some examples include but are not limited to:

- Youth absent without legal permission (AWOLP) for more than six months who have had no contact with the supervising agency.
- Youth who refuse to cooperate with the case manager.
- Youth incarcerated or hospitalized for an extended time period.

In these cases, the following must occur prior to case closure:

- Active and extraordinary efforts to achieve permanency must be documented in the case service plan.
- Approval from the second line supervisor in the case service plan. If it has been less than 30-calendar days since the last case service plan was completed, this can be documented in a social work contact.

Discharge Criteria for State Wards (Act 220 or Act 296)

Although a youth can remain in care until their 21st birthday, a youth committed to MCI remains a ward of the state until age 19 or until the youth is discharged sooner by the MCI superintendent. Reasons for early discharge include:

- Adoption.
- Marriage, if the youth is under age 18.

- Emancipation, or release of the rights of custody over a ward under age 18. Emancipation occurs by court order pursuant to a petition filed by the minor with the Family Division of Circuit Court and includes a declaration by the minor of self-sufficiency with respect to their financial, social, and personal affairs. Requirements for emancipation are:
 - The petition for emancipation.
 - An affidavit to accompany the petition declaring that an individual has personal knowledge of the minor's circumstances, is convinced of the minor's ability to be self-sufficient, and believes that emancipation is in the best interests of the minor.
 - An approved DHS-1476, Early Discharge of MCI Ward.

Requesting MCI Superintendent's Written Consent

Discharge for a ward prior to age 19 requires only the MCI superintendent's written consent. Prior to requesting consent from the MCI superintendent, case managers must review the *Assessment Factors for Case Closing Decisions for Older Youth* in this item and document the outcome in the case service plan.

To request consent, case managers must complete the DHS-1476, Early Discharge of MCI Ward, and send the form to:

Michigan Children's Institute
235 S. Grand Ave, Suite 514
Lansing, MI 48909
FAX: 517-335-6177

The MCI superintendent will make a decision regarding the request and return the DHS-1476, Early Discharge of MCI Ward, to the case manager.

**90-Day Discharge
Planning Meeting**

A 90-Day Discharge Planning meeting must be held between 60 and 90-calendar days prior to a planned case closure for any youth exiting care at age 16 or older. For an unplanned case closure, the 90-Day Discharge Planning meeting must occur within 30 days after the case closes. The 90-Day Discharge Planning meeting is held to engage youth and to ensure that they can participate in their

own discharge planning; see [FOM 722-06B, Family Team Meetings](#).

AFTERCARE SERVICES

In addition to the items below, case managers must inform youth of any additional services, such as local resources, that may be available after case closure.

Housing Resource Referral

All youth aged 18 and older without an identified housing situation at the time of case closure must be referred to a housing resource. Housing resources include homeless youth and runaway contractors and other local housing resources.

Homeless Youth and Runaway Contractors-Transitional Living Program

Homeless youth and runaway contractors must serve both homeless and runaway youth. Former foster youth are a specified population for homeless youth services through their transitional living program. Contractors must ensure 25 percent of their clients are youth that have transitioned from foster care.

A [Homeless Youth and Runaway Contractors list](#) can be found at the [MDHHS Foster Youth in Transition - Housing](#) homepage.

Referral Process

The case manager must complete the [DHS-956, Foster Youth Housing Referral](#). The original must be sent to the local homeless youth and runaway contractor and a copy must be emailed to the attention of the Homeless Youth and Runaway Analyst at the [Child Welfare Policy Mailbox \(Child-Welfare-Policy@michigan.gov\)](#).

The homeless youth and runaway contractor must contact the youth within 72 hours of receiving the referral.

Eligibility

Youth are not eligible for services under the homeless youth and runaway contract while the foster care or juvenile justice case is open, including youth who are AWOLP. However, the contractor may meet with the youth, the case manager, and other identified

service providers, for up to two months prior to case closure to ensure a successful transition from foster care to the transitional living program.

Note: The housing plan and the youth's consent must be documented in the final case service plan.

Documentation

Before case closure, case managers must document in the service plan that referrals were made, and the following actions were completed:

- Diligently pursued multiple living arrangements and housing options.
- Assessed the reasons independent living with case management services was not an option.
- Contacted the area homeless youth and runaway contractor and verified an opening for the youth upon case closure.

Foster Care Transitional Medicaid

Most youth who exit care after turning 18 years of age are eligible for Foster Care Transitional Medicaid (FCTMA). For eligibility criteria, enrollment procedures, youth notification of eligibility, and system actions; see [FOM 803, Medicaid - Foster Care](#).

Supplemental Security Income

The Social Security Administration (SSA) recognizes that Supplemental Security Income (SSI) financial support and health benefits help ease the transition from care.

Case managers must ensure a timely transition by facilitating the SSI application process at SSA with the youth; see [FOM 902-12, Government and Other Benefits](#).

Durable Power of Attorney

A durable power of attorney for health care allows youth to be in control of their health in the absence of the ability to make decisions about their health care treatment. Youth can choose someone they trust to make such decisions on their behalf. All youth age 18 and older who are still under the care and supervision of MDHHS and are exiting care can establish a durable power of attorney for health care; see [FOM 722-06C, Durable Power of Attorney for Health Care](#).

Discharge Documents

For documents that the case manager must provide to the parents or legal guardians of youth exiting care, as well as specific documents that must be provided to youth leaving care at age 18 or older or due to legal emancipation by court order, see [FOM 722-15, Case Closing](#).

RESOURCES

- [DHS-5307, Rights and Responsibilities of Children and Youth in Foster Care](#).
- [DHS-4527, Independent Living Agreement](#).
- [DHS-348, Michigan Works!/Workforce Innovation and Opportunity Act Agency Referral](#).
- [DHS-69, Foster Care/Juvenile Justice Action Summary](#).
- [DHS-1476, Early Discharge of MCI Ward](#).
- [DHS-956, Foster Youth Housing Referral](#).

LEGAL BASE

Federal Law

Social Security Act, 42 U.S.C. 675(1)(D)

Social Security Act, 42 U.S.C. 675(1)(B)

Social Security Act, 42 U.S.C. 675(5)(D)

Social Security Act, 42 U.S.C. 675(5)(I)

45 CFR 1356.21(o)**State Law**

***The Child Care Organizations Act, 1973 PA 116, as amended,
MCL 722.111(e)***

***The Adult Foster Care Facility Licensing Act, 1979 PA 218,
MCL 400.701***

***Michigan Children's Institute, 1935 PA 220, MCL 400.201 et
seq.***

Probate Code, 1939 PA 288, MCL 712A.2a

***Foster Care and Adoption Services Act, 1994 PA 203, MCL
722.954c***

Licensing Rule

Mich Admin Code, R400.12501 - R400.12509

POLICY CONTACT

Questions about this policy item may be directed to the [Child Welfare Policy Mailbox \(Child-Welfare-Policy@michigan.gov\)](mailto:Child-Welfare-Policy@michigan.gov).